

**Legislative Decree No.4 of 1981**  
**concerning eradication of illiteracy**

Having considered the Amiral Decree issued on Ramadan 4<sup>th</sup> 1396 AH, corresponding: August 29<sup>th</sup> 1976 , concerning the amendment of the constitution,

Having considered the Amiral Decree issued on Shawal 14<sup>th</sup> 1400, corresponding August 24<sup>th</sup> 1980, and Law No. 15 of 1979 concerning public service,

And Law No. 38 of 1964 governing employment in private sectors, amended by Law No. 43 of 1968,

And Law No. 11 of 1965 concerning compulsory education,

Responding to the Prime Minister's request, the Cabinet has passed the following Law which we hereby ratify and promulgate as follows:

**Article 1**

Obliteration of illiteracy is a national responsibility aimed at providing citizens with a degree of education intended to improve their cultural and social status, as a result of which they will be better able to make a contribution by furthering themselves and society and by confronting life's demands.

## **Article 2**

In the application of this Law, the term “illiterate” applies to anyone who did not get a certain amount of education. The Minister of Education lays down rules and regulations determining the level of literacy of those who are able to read and write and do not hold a certificate of eradication of illiteracy.

## **Article 3**

Eradication of illiteracy is compulsory for every one of the followings:

- a- Illiterate male Kuwaitis who are over age according to the Law of compulsory education and below 40.
- b- Illiterate female Kuwaiti employed in the public sector, and who are below 35. Any Kuwaiti who does not belong to either categories has the right to willingly enroll in the elimination of illiteracy programmes. The enforcement of this Law will be gradual according to the categories specified by a decree laid down by the Minister of Education.

## **Article 4**

A literacy Committee is formed, chaired by the Minister of Education and consisting of representatives of the relevant ministries. This committee will be responsible for the general policy to be adopted in implementing this

Law. The Minister of Education will lay down the rules regulating the work process of the committee and its areas of specialization.

#### **Article 5**

All ministries, public authorities and institutes, and private employers undertake the responsibility of eradicating illiteracy and implementing the procedures of work approved by the literacy committee.

#### **Article 6**

The Ministry of Education is responsible for the executive procedures required to act according to the general policy for elimination of illiteracy.

#### **Article 7**

The Ministry of Education undertakes the provision of necessary classes to receive illiterates. The Ministry is authorized to have classes in work places, with the approval of the employer, on condition that the number of illiterates is not less than 25, and on condition that the Ministry deems it necessary to provide such classes.

#### **Article 8**

Employers are obliged to facilitate the enrolment of their illiterate employees, who fall under the conditions of this Law, in classes of eradication of illiteracy. The time spent in these classes should count as official working hours in case they overlap.

#### **Article 9**

Education in centers of eradication of illiteracy is free. Learners will be provided with books and different learning aids free of charge throughout the period of study.



### **Article 10**

Every illiterate, who has become eligible by this Law, has to enroll in the nearest centre for eradication of illiteracy in his area of residence during sixty days starting from the enforcement of this Law, mentioned in article 3, or from the time the conditions apply. He is also subject to regular attendance and exam taking as specified in illiteracy programmes on the dates set by the Ministry of Education. Employers should inform the Ministry of Education about the names of their illiterate employees subject to illiteracy programmes as indicated in the regulations of this Law.

### **Article 11**

In cooperation with other governmental authorities, the Ministry of Education is entitled to list illiterate people who are eligible to the commitment to this Law and those who contravene it according to the previous article of this decree without contradiction to article 18 in this Law.

### **Article 12**

Those who have an illness or an impairment which prevents them from regular class attendance are legally excluded from commitment to this Law. Commitment will take place if the illness or impairment no longer exists. A Law determining these cases will be laid down by the Ministry of Education in collaboration with the Minister of Public Health. Conditions for postponing commitment can also be decided by a Ministerial Decree.

### **Article 13**

The Ministry of Education conducts exams for students in illiteracy programmes at the end of each school year, and a Ministerial Decree regulates its procedures and timing.

### **Article 14**

Everyone who passes the final exams in illiteracy programmes will be awarded an accredited certificate from the Ministry of Education.

### **Article 15**

Best performers in illiteracy programmes will be awarded prizes for encouragement according to the regulations set forward by the illiteracy committee. The committee can propose encouraging incentives for illiteracy certificate holders.

### **Article 16**

Employment of Kuwaiti illiterates is forbidden in public sector starting from the time of this Law. Exception includes those who are enrolled in illiteracy classes and those whom the Board of public service deems to be employed for special reasons.

### **Article 17**

No promotion is allowed to the illiterate employee unless he gets the certificate indicated in article 14 of this Law. In this case, the promotion will take place from the time it was deserved.



### **Article 18**

Anyone who contravenes this Law and does not enroll in one of the illiteracy centers during the time specified in article 10 of this Law will be fined up to KD 100 unless he has a legal excuse.

### **Article 19**

If the percentage of absenteeism, without any reasonable excuse, in a school year is about 25% of regular attendance, the student will be fined up to KD 50. The Minister of Education will regulate accepted excuses.

### **Article 20**

An employer who contravenes articles 8 and 10 of this Law will be fined up to KD100 per employee who breaches the rules of this Law. The fine will be doubled in case the contravention is repeated.

### **Article 21**

Representatives of the Ministry of Education who are assigned the control of the implementation of this Law have the right to inspect all premises, except domiciles, and are allowed to see all documents to check any law breakers and to register fines. They can be accompanied by police force.

### **Article 22**

The Minister of Education lays down the necessary rules for implementing this Law.

### **Article 23**

The Prime Minister, all Ministers each within his jurisdiction, shall implement this Law Decree which will be published in the Official Gazette and come into force at the beginning of the school year 1981/1982.

AMIR OF KUWAIT

JABER AL-AHMED AL-SABAH

Prime Minister

Saad Al-Abdullah al-Sabah

Minister of Education